

CORRESPONDENCE · 5 FEB 2002

Untruths (4)

TYPE	DATE	PARTIES
Argument note	5 Feb 2002	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

"Untruths" note (4) — document in the Collorafi case file · 5 February 2002

Overview: Fourth note in the "Untruths" series: it juxtaposes two elements of the judgment of 8 March 2000 relating to the rents, in order to highlight their contradiction from Mr Collorafi's point of view.

Key points

The note quotes the judgment of 8 March 2000, according to which McDonald's applied "rent rates that are incomprehensible in a time of economic war" and should have gone outside the range provided for in the agreement to enable Mr Collorafi's companies to return to profitability and positive cash flow. It points out that the same judges nevertheless awarded McDonald's, for the six months following the terminations held to be wrongful, an occupation indemnity 50% higher than the rents.

Significance

A note pointing to an inconsistency, from Mr Collorafi's point of view, between the court's criticism of the rents and the occupation indemnity it nevertheless awarded to the opposing party.

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Source: bernardcollorafi.org/en/documents/note-untruths-4-collorafi-mcdonalds-rents-occupation-indemnity-2002/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original document is authoritative.